**UNITED STATES BANKRUPTCY COURT**
**EASTERN DISTRICT OF KENTUCKY**
**LEXINGTON DIVISION**

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|---|---|
| In re: | Case No. 00-00000 |
| EXAMPLE HOLDINGS, LLC,<br>Debtor. | Chapter 7 |
| EXAMPLE TRUSTEE, in his capacity as Chapter 7 Trustee,<br>Plaintiff, | Adv. No. 00-0000 |
| v. | |
| EXAMPLE CREDITOR, INC.<br>Defendant. | |

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**DEFENDANT'S MOTION TO DISMISS THE COMPLAINT AND MEMORANDUM IN SUPPORT**

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Hearing: Thursday, November 19, 2026
Time: 10:00 a.m. (Eastern)
Place: Lexington Courtroom, 1st Floor (fictional)
Objections due: November 12, 2026 (fictional)

The Defendant moves under Federal Rule of Bankruptcy Procedure 9013 and Local Bankruptcy Rule 9013-1 for an order dismissing the Complaint for failure to state a claim, Federal Rule of Civil Procedure 12(b)(6) as made applicable by Rule 7012.[1]

[1] This footnote is fictional. It exists to check that footnotes render at the footnote size and that the space after a footnote mark is kept.

## MEMORANDUM IN SUPPORT

### I. Introduction

The Complaint seeks to avoid a transfer made more than two years before the petition date. The transfer falls outside the reach of 11 U.S.C. § 548(a)(1), and the Complaint pleads no facts that would bring it within any other avoidance provision.

### II. Background

The Debtor filed a voluntary petition under chapter 7 on a fictional date. The Plaintiff, as trustee, filed this adversary proceeding on a fictional date and pleads two counts.

**A. The Complaint**

1. Count I seeks avoidance under section 548.
2. Count II seeks recovery under section 550.

### III. Argument

**A. The Complaint does not plead a transfer within the look-back period**

A complaint must contain enough facts to state a claim that is plausible on its face. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (fictional citation, for layout only).

**B. Count II depends on Count I**

Recovery under section 550 requires an avoidable transfer. Without Count I, Count II has nothing to rest on.

### IV. Conclusion

The Court should dismiss the Complaint.

Respectfully Submitted,

/s/ Jane Q. Example

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**CERTIFICATE OF SERVICE**

I certify that on the date above, I electronically filed the foregoing with the Clerk of Court using the CM/ECF system, which will send notification of the filing to all parties who have appeared, and that I served the foregoing on the Plaintiff by first-class mail (fictional).

/s/ Jane Q. Example

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